

**SUBSTITUTE FOR
HOUSE BILL NO. 5074**

A bill to amend 1978 PA 368, entitled
"Public health code,"
by amending sections 16903, 18111, 18223, 18233, and 18509 (MCL
333.16903, 333.18111, 333.18223, 333.18233, and 333.18509), section
16903 as amended by 2006 PA 388, section 18111 as amended by 2019
PA 96, section 18223 as amended by 2018 PA 24, section 18233 as
amended by 1994 PA 234, and section 18509 as amended by 2004 PA 61.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 Sec. 16903. (1) An individual licensed under this part as a
2 marriage and family therapist shall use only the title "licensed
3 marriage and family therapist" or "licensed marriage counselor" or
4 the abbreviation "l.m.f.t." in representing ~~his or her~~ **the**
5 **individual's** services in the practice of marriage and family



1 therapy to the public.

2 (2) Unless exempt under section 16905(3), only an individual
 3 licensed under this part may advertise that ~~he or she~~ **the**
 4 **individual** offers marriage and family therapy; marriage or family
 5 counseling service or advice; marriage or family guidance service
 6 or advice; marriage or family relations service or advice; marriage
 7 or family problems service or advice; marriage or family relations
 8 advice or assistance; service in the alleviation of a marital or
 9 family problem; or service of similar import or effect that is
 10 included in the practice of marriage and family therapy.

11 (3) The board may grant a limited license to an individual who
 12 has met the requirements of section ~~16909(a)~~ **16909(1) (a)** and (b) in
 13 order to permit that individual to obtain the experience required
 14 under section ~~16909(e)~~. ~~The~~ **16909(1) (c)**. **Except as otherwise**
 15 **provided in subsection (6), the** board shall not renew a limited
 16 license for more than 6 years. ~~A~~ **An individual who is granted a**
 17 ~~limited licensee~~ **license under this subsection** shall do all of the
 18 following:

19 (a) Use only the title "limited licensed marriage and family
 20 therapist" or "limited licensed marriage counselor".

21 (b) Not represent that ~~he or she~~ **the individual** is engaged in
 22 the independent practice of marriage and family therapy.

23 (c) Practice only under the supervision of a fully licensed
 24 marriage and family therapist.

25 (d) Confine ~~his or her~~ **the individual's** practice to an
 26 organized health care setting or other arrangement approved by the
 27 board.

28 (4) An individual engaged in obtaining experience required
 29 under section ~~16909(b)~~ **16909(1) (b)** may use the title "marriage and



1 family therapist intern" or "marriage and family therapist trainee"
 2 during the training period. The board shall not require an
 3 individual obtaining experience required under section ~~16909(b)~~
 4 **16909(1)(b)** to hold a limited license.

5 (5) The following words, titles, or letters or a combination
 6 thereof, with or without qualifying words or phrases, are
 7 restricted in use only to those individuals authorized under this
 8 part to use the terms and in a way prescribed by this part:
 9 "marriage advisor" or "marriage consultant"; "family counselor",
 10 "family advisor", "family therapist", or "family consultant";
 11 "family guidance counselor", "family guidance advisor", or "family
 12 guidance consultant"; "marriage guidance counselor", "marriage
 13 guidance advisor", or "marriage guidance consultant"; "family
 14 relations counselor"; "marriage relations counselor", "marriage
 15 relations advisor", or "marriage relations consultant"; or "marital
 16 counselor" or "marital therapist".

17 **(6) By not later than 5 years after the effective date of the**
 18 **amendatory act that added this subsection, the department shall**
 19 **promulgate rules under section 16194 to prescribe a 3-year license**
 20 **cycle for a limited license granted under subsection (3), which may**
 21 **be renewed for 1 additional 3-year term.**

22 Sec. 18111. (1) Subject to subsection (3), the department may
 23 grant a limited license to an individual who meets both of the
 24 following criteria:

25 (a) Is not less than 18 years of age.

26 (b) Has received, from an accredited college or university
 27 approved by the department, a master's or doctoral degree in
 28 counseling from a qualified program, or a degree determined by the
 29 department in consultation with the board to be substantially



1 equivalent to a counseling degree from a qualified program. The
2 department in consultation with the board shall promulgate rules to
3 establish standards to approve qualified programs.

4 (2) A limited license granted under this section must require
5 that the individual confine ~~his or her~~ **the individual's** practice to
6 a program of counseling experience under the supervision of a
7 licensed professional counselor.

8 (3) The department in consultation with the board shall
9 promulgate rules under section 16145 as necessary or appropriate to
10 supplement the requirements for licensure under this part as a
11 limited licensed counselor, including adopting updated standards of
12 the Council for the Accreditation of Counseling and Related
13 Educational Programs or a successor organization.

14 **(4) By not later than 5 years after the effective date of the**
15 **amendatory act that added this subsection, the department shall**
16 **promulgate rules under section 16194 to prescribe a 3-year license**
17 **cycle for a limited license granted under this section, which may**
18 **be renewed for 1 additional 3-year term.**

19 Sec. 18223. (1) The department, in consultation with the
20 board, shall promulgate rules requiring that to be granted a
21 license under this part, except as provided in subsection (2), an
22 individual must meet both of the following requirements:

23 (a) Have been granted a doctoral degree in psychology, or a
24 doctoral degree in a closely related field, from a doctoral degree
25 program that meets all of the following requirements:

26 (i) Is offered by a regionally accredited or other college,
27 university, or institution approved by the board, and includes
28 education and training appropriate to the practice of psychology.

29 (ii) Has obtained the Association of State and Provincial



Psychology Boards' national register designation, has been accredited by the American Psychological Association or the Canadian Psychological Association, or has obtained a similar designation from or been accredited by an entity approved by the board. However, a program that is in the process of obtaining the designation or becoming accredited as required in this subparagraph before August 1, 2011, and that obtains the designation or becomes accredited on or before August 31, 2020, meets the requirements of this subparagraph.

(b) Have not less than 1 year of postdoctoral experience in the practice of psychology in an organized health care setting or other arrangement, as established by the board.

(2) In addition to section 16182, the board shall grant a limited license to an individual granted a master's degree in psychology from a regionally accredited college, or university, or institution approved by the board, if the individual has education, training, and experience appropriate to the practice of psychology, as established by the board. ~~An individual who applies for an initial limited license under this subsection before March 31, 2018 is not required to take an examination that is approved by the board to be granted a limited license under this part if the individual was granted a master's degree in psychology after January 1, 2007 but before June 30, 2010 from the college, university, or institution described in this subsection, the individual has continuously held the temporary license described in this section since it was initially granted by the board, and the disciplinary subcommittee has not imposed a sanction against the individual while holding the temporary license described in this section.~~ Except for duties performed as an employee of a



1 governmental entity or of a nonprofit organization serving
 2 benevolent and charitable purposes, the board shall place 2
 3 limitations on a license granted to an individual under this
 4 subsection. The limitations must require supervision by a
 5 psychologist who has a license other than a limited license and
 6 must prohibit advertising or other representation to the public
 7 that will lead the public to believe the individual is engaging in
 8 the practice of psychology. A limited license granted under this
 9 subsection is renewable under part 161. An individual who is
 10 applying for a limited license under this subsection must have 1
 11 year of supervised postgraduate experience in an organized health
 12 care setting or other arrangement, as established by the board. The
 13 individual must be supervised by a psychologist who has a license
 14 other than a limited license, or if a psychologist who has a
 15 license other than a limited license is not available, by a
 16 psychologist who has at least a master's degree in psychology and
 17 at least 3 years of experience in the practice of psychology or by
 18 any other individual approved by the board.

19 (3) The board shall grant a temporary license to an individual
 20 described in subsection (2) for the purpose of obtaining the 1 year
 21 of postgraduate experience described in that subsection. ~~Beginning~~
 22 ~~on March 31, 2018, a~~ **Except as otherwise provided in subsection**
 23 **(5), a** temporary license granted under this subsection is valid for
 24 24 months and may be renewed for 1 additional 24-month term. ~~If~~
 25 **Except as otherwise provided in subsection (5), if** an individual
 26 described in subsection (2) was granted a temporary license by the
 27 board before March 31, 2018, ~~his or her~~ **the individual's** temporary
 28 license may be renewed for 1 additional 24-month term.

29 (4) The board shall grant a temporary license to an individual



1 who is enrolled in a doctoral degree program that meets the
 2 requirements of subsection (1). ~~Beginning on March 31, 2018, a~~
 3 **Except as otherwise provided in subsection (5), a** temporary license
 4 granted under this subsection is valid for 24 months and may be
 5 renewed for 3 additional 24-month terms. ~~If~~ **Except as otherwise**
 6 **provided in subsection (5), if** an individual enrolled in a doctoral
 7 program that meets the requirements of subsection (1) was granted a
 8 temporary license by the board before March 31, 2018, ~~his or her~~
 9 **the individual's** temporary license may be renewed for 3 additional
 10 24-month terms.

11 **(5) By not later than 5 years after the effective date of the**
 12 **amendatory act that added this subsection, the department shall**
 13 **promulgate rules under section 16194 to prescribe the following**
 14 **license cycles:**

15 **(a) For a license granted under subsection (1) or (2), a 3-**
 16 **year license cycle, which license is renewable under part 161.**

17 **(b) For a license granted under subsection (3), a 3-year**
 18 **license cycle, which license is renewable for 1 additional 3-year**
 19 **term.**

20 **(c) For a license granted under subsection (4), a 3-year**
 21 **license cycle, which license is renewable for 2 additional 3-year**
 22 **terms.**

23 Sec. 18233. (1) In addition to the requirements of part 161,
 24 the board may require a licensee seeking renewal of a license to
 25 furnish the board with satisfactory evidence that during the ~~2~~
 26 ~~years~~ **license cycle** immediately preceding application for renewal
 27 the licensee has attended continuing education courses or programs
 28 approved by the board totaling not less than a number of hours
 29 established by rule of the board in subjects related to the



1 practice of psychology and designed to further educate licensees.

2 (2) As required under section 16204, the board shall
3 promulgate rules requiring each applicant for license renewal to
4 complete as part of the continuing education requirement of
5 subsection (1) an appropriate number of hours or courses in pain
6 and symptom management.

7 Sec. 18509. (1) Except as otherwise provided in section 18515,
8 an individual granted a license under this part shall meet the
9 following requirements:

10 (a) A licensed bachelor's social worker shall have been
11 awarded a bachelor's degree in social work from a college or
12 university social work program approved by the board and shall have
13 completed at least 2 years of full-time postbachelor's degree
14 experience, or the equivalent in part-time hours, in the practice
15 of social work at the bachelor's level under the supervision of a
16 licensed master's social worker. ~~Until July 1, 2008, the required~~
17 ~~experience in the practice of social work at the bachelor's level~~
18 ~~shall be performed under the supervision of a person who has been~~
19 ~~awarded a master's or doctoral degree in social work from a college~~
20 ~~or university school of social work.~~

21 (b) A licensed master's social worker shall have been awarded
22 a master's or doctoral degree in the field of social work from a
23 college or university social work program approved by the board and
24 shall have completed at least 2 years of full-time postmaster's or
25 postdoctoral degree experience, or the equivalent in part-time
26 hours, in the practice of social work at the master's level under
27 the supervision of a licensed master's social worker. ~~Until July 1,~~
28 ~~2008, the required experience in the practice of social work at the~~
29 ~~master's level shall be performed under the supervision of a person~~



1 ~~who has been awarded a master's or doctoral degree in the field of~~
2 ~~social work from a college or university school of social work and~~
3 ~~has engaged in the practice of social work for not less than 2~~
4 ~~years.~~ In addition to the requirements set forth in this
5 subdivision, a licensed master's social worker employed by a school
6 district shall meet the requirements for employment as a school
7 social worker contained in the revised school code, 1976 PA 451,
8 MCL 380.1 to 380.1852, and the rules promulgated under that act.

9 (2) The board may grant a limited license to engage in the 2-
10 year postdegree experience required under subsection (1) to an
11 individual who has completed all the educational requirements for
12 licensure as a bachelor's social worker or a master's social
13 worker. ~~A~~ **Except as otherwise provided in subsection (3), a** limited
14 license granted under this subsection is renewable for not more
15 than 6 years.

16 (3) **By not later than 5 years after the effective date of the**
17 **amendatory act that added this subsection, the department shall**
18 **promulgate rules under section 16194 to prescribe a 3-year license**
19 **cycle for a limited license granted under subsection (2), which may**
20 **be renewed for 1 additional 3-year term.**